# State of Wisconsin

**2025 Assembly Joint Resolution 10**

## ENROLLED JOINT RESOLUTION

***To amend*** section 18 of article I of the constitution; **relating to:** the freedom to gather in places of worship during a state of emergency (second consideration).

Whereas, the 2023 legislature in regular session considered a proposed amendment to the constitution in 2023 Senate Joint Resolution 54, which became 2023 Enrolled Joint Resolution 11, and agreed to it by a majority of the members elected to each of the two houses, which proposed amendment reads as follows:

**SECTION 1.** Section 18 of article I of the constitution is amended to read:

[Article I] Section 18. The right of every person to worship Almighty God according to the dictates of conscience shall never be infringed; nor shall any person be compelled to attend, erect or support any place of worship, or to maintain any ministry, without consent; nor shall any control of, or interference with, the rights of conscience be permitted, or any preference be given by law to any religious establishments or modes of worship; nor shall any money be drawn from the treasury for the benefit of religious societies, or religious or theological seminaries; nor shall the state or a political subdivision of the state order the closure of or forbid gatherings in places of worship in response to a state of emergency at the national, state, or local level, including an emergency related to public health.

***Now, therefore, be it resolved by the assembly, the senate concurring, That*** the foregoing proposed amendment to the constitution is agreed to by the 2025 legislature; and, be it further

***Resolved, That*** the foregoing proposed amendment to the constitution be submitted to a vote

of the people at the election to be held on the first Tuesday of November 2026; and, be it further

***Resolved, That*** the question concerning ratification of the foregoing proposed amendment to the constitution be stated on the ballot as follows:

**QUESTION 1:** "***Freedom to gather in places of worship during an emergency.*** Shall section 18 of article I of the constitution, which deals with religious liberty, be amended to prohibit the state or a political subdivision of the state from ordering the closure of, or forbidding gatherings in, places of worship in response to a state of emergency, including a public health emergency?"

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| Senator Mary Felzkowski<br>President of the Senate | Representative Robin J. Vos<br>Speaker of the Assembly |
| Date | Edward A. Blazel<br>Assembly Chief Clerk |